

7.5 Partially Detained Goods

A trader can either amend or invalidate the original declaration in accordance with Article 173 and 174 UCC. The data elements that cannot be amended include the following:

- MRN
- LRN (DE 2/5)
- Declaration Type (DE 1/1)
- Additional Declaration Type (DE 1/2)
- Customs Office of Lodgement
- Declarant ID (DE 3/18)
- Representative ID (DE 3/20)

Alternatively, the original declaration can be invalidated, and two new declarations lodged; one to cover the goods to be released and the other to cover the detained goods.

Article 194 UCC provides that all goods covered by the same declaration shall be released at the same time. However, where a customs declaration covers goods falling under two or more items, the particulars relating to goods falling under each item shall be deemed to constitute a separate customs declaration.

7.6 Overtime Goods

Non-Union goods in temporary storage shall be placed under a customs procedure or re-exported within 90 days (Article 149 UCC).

Failure to have the goods placed under a customs procedure or re-exported will result in a customs debt being incurred pursuant to Article 79 UCC.

Where non-union goods have not been placed under a customs procedure or re-exported within 90 days and customs have verified that the goods are still on hand they are to be entered in the Overtime Goods Register. The importer is to be informed that a customs debt has been incurred and requested to take immediate action to effect clearance. Failure to do so will result in the forfeiture of the goods and their transfer to the state warehouse for their disposal in accordance with Articles 197, 198 and 199 UCC.